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As We See It - A regulatory state: Skittles and condoms

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It should be no surprise, but California is the most regulated state in the nation.

As of 2021, California sported 395,608 regulatory restrictions, according to news reports.

On average, states have 135,000 regulatory restrictions in administrative rules, so California's regulations more than doubled the national average.

Take for example three from last week.

One involves Skittles. Democratic Assemblymembers Jesse Gabriel of Woodland Hills and Buffy Wicks from Oakland have put together a food chemical bill that would, starting in 2025, ban the sale, manufacturing and distribution of five food additives linked to health issues in children. One of the listed chemicals, titanium dioxide, is an ingredient in Skittles. Although the bill does not name any specific foods, the Skittles connection, predictably, made national headlines as yet another example of our state's endless fascination with regulations.

Another proposed law for California also made national news: a requirement that public high schools provide free condoms. State Sen. Caroline Menjivar, D-Burbank, and co-author Sen. Scott Wiener, D-San Francisco, introduced legislation requiring all public high schools "to make internal and external condoms available to all pupils free of charge, as provided" in order to "prevent and reduce unintended pregnancies and sexually transmitted infections" starting with the 2024–25 school year.

Menjivar told the Los Angeles Times that young people, and especially youth of color, have been disproportionately affected by high rates of sexually transmitted diseases in California. About 52% of sexually active young people use condoms, according to the Centers for Disease Control and Prevention.

In opposition, California Family Council director Greg Burt told the Times that "more condoms are not the solution. The only sure way to reduce STI rates is to change student sexual activity and the number of sexual partners they have. We have to stop assuming hormonal teens can't control themselves."

Then there's the latest proposal to force oil companies to come clean on their profit margins in the state. Senate Bill X1-2 cleared the Senate Thursday, and next moves to the Assembly for consideration. The bill would authorize yet another regulatory agency, the California Energy Commission, to investigate oil company profits and potentially penalize the corporations.

Even many Republicans in the Legislature have voiced frustration over the high prices of gasoline in the state (not to mention natural gas), which last summer soared $3 a gallon more than the national average.

The oil companies, which will surely pass on any penalties to consumers, have responded saying the state's numerous environmental regulations and high gas tax are driving the prices.

And yet, the state's unquenched appetite for regulations has even frustrated some Democrats, especially when it comes to local regulations that make it expensive and maddeningly difficult to build housing. Santa Cruz County, dating back to the 1980s, has long had a reputation for being one such regulatory swamp, which may explain the uproar over the rejected appointment, then reappointment of longtime Santa Cruz Planning Commissioner Andy Schiffrin, whose considerable expertise in planning regulations has often been targeted by developers as a reason

why so little new housing is created here.

But don’t expect the regulatory/new laws drive to slow. California is probably the most liberal state in the nation, and liberals (and progressives) often come down on the side of more government control rather than less.

As for the arguments that too many regulations are behind the soaring cost of living and families and businesses leaving the state in increasing numbers, regulators point out that California remains the fifth largest economy in the world and that many regulations are to safeguard the health of residents and to make sure businesses are responsible for the pollution they cause and the well being of workers.

And who really needs Skittles anyway?

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